FRANK CHINANGWA
versus
NETSAI BLESSING CHINANGWA (Nee MARE)

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE;9 July and 20 November 2025

Matrimonial Summons

B Pabwe, for the Plaintiff
Defendant in person

TSANGA J:

The marriage between the parties has broken down. They have lost love and affection for each other and last stayed together as husband and wife in 2022. The plaintiff, in particular is certain he wants out of the marriage. He says they tried to engage relatives to no avail. He has accepted the inevitable, which is divorce. They married customarily in 2000 and upgraded their marriage to a civil one in 2005. They acquired immovable property known as No.4350 Nhowe, Norton. It is in the husband's name. The issue between them is not even how the immovable should be shared as they agree that each party is entitled to a 50% share. The issue is when it should be sold. They have four children of whom two are still minors aged 17 and 11 years old. They are agreed that the defendant should have custody of the minor children whilst the plaintiff will exercise his access rights. Both children are in boarding school.

He says he is currently staying at his mother's house whilst the defendant gets to largely enjoy the property on her own since the minor children are in boarding school. He is of the firm view that the house should be sold and shared immediately. He cannot afford to buy her out and she too has no offer to buy him out. He says that he would be able to find accommodation with his 50 % and that she too should do likewise instead of hiding behind the children. His proposal is also that the house be valued and that the evaluation expenses be deductible from the sale proceeds.

They also vary on maintenance for the minor children that the plaintiff should pay the defendant for the time she is with them during school holidays. As regards access, he would like to have the children during the first two weeks of every holiday. That is not under contestation. In fact, she also raised in her closing submissions a claim for maintenance for herself for US$100.00 which she did not motivate during her evidence and which was never an issue referred to trial.

As regards the sale of the matrimonial home, the defendant is opposed. She says the house should only be sold when the youngest child attains 18 years old. Her preference, in fact, is that the house be put in a Trust for the children so that their lifestyle is not affected. She says that the youngest child is in Grade 5 and suffers from tonsils and she often has to go to school to take him to doctors. Besides asking that the house be sold when the youngest child attains 18 years of age, the defendant would also like the plaintiff to pay maintenance at the rate of US$150.00 per month for both children when they are with her. He says he can only afford US$50.00 a month for the two weeks that the children will be staying with her. He is the one responsible for their school fees and all school needs and related requirements.

No evidence was led by either party on the actual income available to both. The defendant did not lead any evidence on the expenses she incurs on behalf of the children during the time that they spend with her.

Legal and factual Analysis

As regards the matrimonial home, exclusive possession of the family home upon a marriage breakdown can indeed provide a custodial parent with stability and security in playing that role. For example, the court in *Katsamba* v *Katsamba* 2014 (1)ZLR 187 (H) at p 193 G-H emphasised that the considerations to be taken into account in terms of s 7 of the Matrimonial Causes Act [*Chapter 5:13*] particularly as regards financial needs and obligations that the parties may have, are both adult and child centred. In analysing s 7 (4)(b) of the Matrimonial Causes Act which enjoins the court to consider ***the financial needs, obligations and responsibilities which each spouse and child is likely to have in the foreseeable future"*** the court remarked as follows:

> "The approach to division of property on divorce in the Matrimonial Causes Act is essentially evaluative. The considerations to be taken into account are both adult and child centred. Among the check list of factors to be examined by the court in exercising its evaluative discretion, are issues such as income earning capacity, financial needs, obligations and responsibilities, as they are likely to affect each spouse and child for the foreseeable future. Section 7(4) (b) on future financial obligations and responsibilities especially aims at ensuring that arrangements take into account children's future needs before a divorce is finalised."

Whilst sharing matrimonial property and support are two different things, there is a connection between providing shelter and the obligation to support. The factors to consider in a "child centred approach" to financial needs and obligations include children's welfare, the inadequacy or lack of alternative shelter for the children, and the spouses' respective financial positions.

Thus, the court in the *Katsamba* case, allowed the wife temporary exclusive possession of the house once shared, until the youngest minor child reached 18 years, against the backdrop of the difficulty that the mother of the children had in enforcing an existing maintenance order against the husband. She had to resort to making ends meet by letting out two of the five rooms in the matrimonial home to tenants. Her financial position was such that she would find herself largely using the proceeds of her half share towards the support of the children. The children in that case were 14 and 9 years old at the time.

In this instance, there is no justification for the deferred selling of the property where the plaintiff is caring for the financial needs of both minor children who are in boarding school. The plaintiff is correct that the major beneficiary of the home under these circumstances would be the defendant.

The defendant in her closing submissions raised the issue of the property being registered in the children's names. Whilst the needs of children are to be taken into account in terms of section 7(4)(b) of the Matrimonial Causes Act, a divorcing spouse cannot be compelled to donate their share of the property acquired during marriage to the children if they do not wish to do so. Donating the property to the children and putting it in a Trust could be done by the defendant herself if she was able to buy out the plaintiff of his 50% so that she has the entire property to donate to the children and register it in their names if she so desires. However, she did not indicate that she is in a position to buy him out or that she has the means to do so. What she wants therefore is one thing but what can actually be achieved or what is possible is another. It makes sense to allow each party to make a fresh start upon an equal sharing of the property as already agreed to by the plaintiff.

On the issue of maintenance for the children, the duty to maintain rests on both spouses according to their ability. As highlighted in *Damson* v *Ushamba* 2014 (2) ZLR 1 (H) there is nothing in any legislation that suggests that only the father of the child is to contribute to the financial upkeep of a child. It is noted that the plaintiff is already bearing the children's major expenses. His offer for maintenance during the time they are with the defendant is US$50.00. Since the defendant is of the view that US$150.00 for both children

would be adequate, he should pay half and her contribution can be to top up the defendant's contribution. The Children's Court can always be approached for a proper enquiry since neither of the parties produced any evidence of income or expenditure regarding the issue of maintenance that ought to be paid.

It is therefore ordered that:

1. A decree of divorce be and is hereby granted.
2. Custody of the two minor children Tanatswa Blessing Chinangwa born 17 May 2008, and Tapiwa Chinangwa born 4 July 2014 be awarded to the defendant, with plaintiff having access the first two weeks of every school holiday.
3. The plaintiff shall contribute maintenance of US$70.00 (US$35.00 per child) during the holiday period when the children are not in boarding school and are in the custody of the defendant.
4. In addition, the plaintiff shall remain responsible for both minors' school fees and related school requirements, clothing, and, food and accommodation for the period they are with him.
5. The immovable property known as No.4350 Nhowe, Norton, shall be sold and the net proceeds shall be shared equally at a ratio of 50% for the plaintiff and 50% for the defendant.
6. The immovable property shall be valued by a registered estate agent as agreed to by the parties or if there is no agreement, the Registrar shall appoint an estate agent from the list of valuers within 30 days of this order.
7. The cost of evaluation shall be shared equally by the parties.
8. The immovable property shall be sold at the best advantage at most within three months of the valuation report and the net proceeds shall be shared in terms of paragraph 5 of this order.
9. Each party shall bear their own costs of suit.

TSANGA J:…….

Venturas & Samkange, plaintiff's legal practitioners